

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lauren Goldapper	Team: Team # 6	CCRB Case #: 201110337	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 08/03/2011 1:00 AM	Location of Incident: East 2nd Street and Avenue I and at the 70th Precinct stationhouse	18 Mo. SOL 2/3/2013	Precinct: 70
Date/Time CV Reported Thu, 08/04/2011 11:12 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/10/2011 10:49 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Winston Willabus	03104	935969	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM David Bowman	16034	944015	PCT
2. POM Joseph Imperatrice	24955	940282	070 PCT
3. POM Jonmichel Lobosco	30245	940384	070 PCT
4. POM Albert Romano	22490	940667	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Winston Willabus	Abuse: Sgt. Winston Willabus authorized the stop of the car in which § 87(2)(b) was an occupant at East 2nd Street and Avenue I, in Brooklyn.	A . Exonerated
B . SGT Winston Willabus	Abuse: Sgt. Winston Willabus authorized the strip-search of § 87(2)(b) at the 70th Precinct stationhouse.	B . Exonerated

Case Summary

On August 4, 2011, § 87(2)(b) and § 87(2)(b) who did not witness the incident, filed a complaint on behalf of their § 87(2)(b) son, § 87(2)(b) with the IAB Command Center (IAB log #11-35739), which was received by the CCRB on August 10, 2011 (encl. 10). On August 3, 2011, at 1:00 a.m., § 87(2)(b) was pulled over in the vicinity of East 2nd Street and Avenue I, in Brooklyn. The following allegations resulted:

- **Allegation A – Abuse of Authority:** Sgt. Winston Willabus authorized the stop of the car in which § 87(2)(b) was an occupant at East 2nd Street and Avenue I, in Brooklyn.
- **Allegation B – Abuse of Authority:** Sgt. Winston Willabus authorized the strip-search of § 87(2)(b) at the 70th Precinct stationhouse.

§ 87(2)(g)

it is recommended that **Allegations A and B** be closed as **Exonerated**.

§ 87(2)(g)

This case was reassigned to Inv. Goldapper on January 11, 2012, upon Inv. Jessica Welker's resignation from the agency.

Results of Investigation

Civilian Statements

Victim: § 87(2)(b)

- § 87(2)(b) was a § 87(2)(b) Hispanic male at the time of incident, who is § 87(2)(b), and has black hair and brown eyes.

CCRB Statement

On August 26, 2011, the CCRB interviewed § 87(2)(b) (encl. 15). On August 3, 2011, at approximately 1:00 a.m., § 87(2)(b) was driving a vehicle registered to his girlfriend, § 87(2)(b), which is a 2011 black Nissan Maxima, license plate # § 87(2)(b). § 87(2)(b) was travelling alone. § 87(2)(b) drove from his home, located at § 87(2)(b) in Brooklyn and was simply driving around the neighborhood. § 87(2)(b) stopped at a bar, located in the vicinity of McDonald Avenue and Church Avenue, which was 20 minutes away. § 87(2)(b) entered the bar but left shortly after because it was empty. At no point did § 87(2)(b) stop to talk to anyone, shake hands with anyone, or exchange objects with anyone. Nobody approached or entered § 87(2)(b)'s vehicle. § 87(2)(b) continued driving for approximately 10 to 20 minutes. He did not make any vehicle or traffic violations that he is aware of. A marked vehicle pulled § 87(2)(b) over with lights and sirens on East 2nd Street and Avenue I, in Brooklyn. As soon as § 87(2)(b) pulled over, he reached for his license and registration, which was in a cup holder. He did not reach towards any other part of the vehicle. There were approximately two to three unmarked vehicles at the location, containing 10 to 12 officers.

An officer, who § 87(2)(b) identified as PO David Bowman from the 70th Precinct, approached and told § 87(2)(b) to exit the vehicle. § 87(2)(b) identified PO Bowman by name and described him as a white male, who was 5'10" tall and had a muscular build. Another officer, identified as Sgt. Winston Willabus from the 70th Precinct, immediately handcuffed § 87(2)(b). Sgt. Willabus was described as a black male, who was 6'3" tall and was dressed in uniform. PO Bowman escorted § 87(2)(b) to an unmarked black vehicle 20 to 30 feet away

from the vehicle he was driving. PO Bowman frisked and searched § 87(2)(b) s person. Multiple other officers searched § 87(2)(b) vehicle. An unidentified officer drove § 87(2)(b) s vehicle to the 70th Precinct stationhouse and § 87(2)(b) was transported in a different vehicle.

While at the 70th Precinct stationhouse, PO Bowman escorted § 87(2)(b) outside of the bathroom, but in front of the cell area. § 87(2)(b) said that he was positioned in a way that the other prisoners were able to see him. PO Bowman, Sgt. Willabus and another officer, identified through the investigation as PO Joseph Imperatrice from the 70th Precinct, were present. § 87(2)(b) described PO Imperatrice as a white or Hispanic male, who was 5'7" tall, chubby, and was dressed in uniform. PO Bowman instructed § 87(2)(b) to remove all of his clothes and wiggle his toes, which § 87(2)(b) did. PO Bowman checked § 87(2)(b) s fat creases on his upper body and was instructed to lift his scrotum, which he did. PO Bowman squatted and shined a flashlight towards § 87(2)(b) s scrotum. PO Bowman then instructed § 87(2)(b) to squat and spread his buttocks. § 87(2)(b) was instructed to cough, which he did. While he was squatting, PO Bowman squatted behind him and shined a flashlight towards his buttocks. Then, PO Bowman put on rubber gloves and instructed Sgt. Willabus to hold § 87(2)(b). With one hand on § 87(2)(b) s buttocks, PO Bowman spread § 87(2)(b) s buttocks and protruded his finger into § 87(2)(b) s rectum. § 87(2)(b) said that his attorney advised him not to provide any further details regarding the cavity search. § 87(2)(b) s allegation that officers conducted a cavity search was included in IAB log #11-35759.

Witness Statements:

§ 87(2)(b) § 87(2)(b) and § 87(2)(b) Several prisoners were identified through the arrest index and command log. They include § 87(2)(b) On October 3, 2011, § 87(2)(b) provided the CCRB with a phone statement. § 87(2)(b) and § 87(2)(b) provided the CCRB with phone statements on October 19, 2011 (encl. 19). § 87(2)(g) § 87(2)(b) and § 87(2)(b) did not witness a search of § 87(2)(b) in the holding cell area. § 87(2)(b) added that he saw § 87(2)(b) being taken into a bathroom but the door was closed and he did not witness a search of § 87(2)(b)

Witnesses Not Interviewed

Additional prisoners were identified through the arrest index and command log. They include § 87(2)(b) and § 87(2)(b) Letters were sent to all the prisoners in an attempt to obtain their statements. None of the prisoners responded to the CCRB's letters. § 87(2)(g)

NYPD Statement(s):

Subject Officer: SGT. WINSTON WILLABUS

- Sgt. Willabus was a § 87(2)(b) -old black male at the time of incident, who was § 87(2)(b), and had black hair and brown eyes.
- Sgt. Willabus worked from 9:15 p.m. on August 2, 2011, to 6:12 a.m. on August 3, 2011, and was dressed in uniform. Sgt. Willabus was assigned to the 70th Precinct and worked as the Street Narcotics Enforcement Unit sergeant and was working with PO Joseph Imperatrice. Sgt. Willabus was assigned to RMP #5041.

Memo Book

Sgt. Willabus' memo book (encl. 34) reflects that on August 3, 2011, at 12:50 a.m., there was a car stop at Avenue I and East 2nd Street, in Brooklyn. At 1:00 a.m., there was an arrest. At 1:10 a.m., Sgt. Willabus arrived at the 70th Precinct. At 1:20 a.m., an authorized strip search yielded positive results.

CCRB Statement

Sgt. Willabus was interviewed at the CCRB on March 22, 2012 (encl. 37). On August 3, 2011, Sgt. Willabus and PO Imperatrice conducted a traffic stop at the intersection of East 2nd Street and Avenue I, in Brooklyn. Sgt. Willabus pulled over the vehicle for a traffic violation, but did not recall what the violation was. PO Imperatrice went to the driver side of the car and Sgt. Willabus went to the passenger side of the car. When PO Imperatrice approached the vehicle, PO Imperatrice saw § 87(2)(b) stuff something down his pants. Sgt. Willabus asked § 87(2)(b) to lower the windows of the vehicle. PO Imperatrice asked § 87(2)(b) for his license, registration and insurance. Sgt. Willabus smelled the odor of marijuana coming from inside the car. PO Imperatrice asked § 87(2)(b) to step out of the vehicle and go to the back of his car, which § 87(2)(b) did. Sgt. Willabus went to the back of the vehicle with § 87(2)(b). Sgt. Willabus noticed the § 87(2)(b)'s eyes were glassy and red. This indicated to Sgt. Willabus that § 87(2)(b) had smoked marijuana recently. PO Imperatrice signaled to Sgt. Willabus that he saw something in the car. PO Imperatrice subsequently recovered marijuana from the center console of the car. PO Imperatrice told Sgt. Willabus the marijuana was in plain view. Sgt. Willabus asked § 87(2)(b) about the marijuana and § 87(2)(b) said that he smoked earlier. § 87(2)(b) did not state how much earlier.

PO David Bowman and PO Albert Romano arrived to the location to back up Sgt. Willabus and PO Imperatrice. Sgt. Willabus authorized the search of § 87(2)(b)'s vehicle. PO Imperatrice and PO Bowman searched the vehicle. Sgt. Willabus believed that PO Imperatrice initially frisked § 87(2)(b) and that PO Bowman frisked § 87(2)(b) a second time. § 87(2)(b) was already under arrest during the frisks of his person.

§ 87(2)(b) was transported back to the 70th Precinct. While at the 70th Precinct stationhouse, § 87(2)(b) was strip-searched in the holding cell bathroom. Sgt. Willabus was present while PO Bowman and PO Imperatrice conducted the strip-search of § 87(2)(b). Sgt. Willabus could not recall if any officers had gloves on. PO Bowman asked § 87(2)(b) to remove one article of clothing at a time and then handed it to PO Imperatrice. PO Imperatrice searched the clothing for any contraband. § 87(2)(b) was never cavity searched. Sgt. Willabus stated that none of the officers placed their fingers in § 87(2)(b)'s rectum. The officers recovered marijuana and cocaine during the strip-search, which were mostly found tucked into § 87(2)(b)'s clothing.

Witness Officer: PO JOSEPH IMPERATRICE

- PO Imperatrice is a § 87(2)(b)-old white male, who is § 87(2)(b), and has brown hair and brown eyes.
- PO Imperatrice is currently a sergeant assigned to the 7th Precinct. At the time of incident, PO Imperatrice was assigned to the 70th Precinct and worked in the Street Narcotics Enforcement Unit.
- PO Imperatrice worked from 9:15 p.m. on August 2, 2011, to 5:40 a.m. on August 3, 2011, and was dressed in uniform. PO Imperatrice did not remember who he was working with on the date of incident, or the vehicle number he was assigned to.

Memo Book

PO Imperatrice's memo book (encl. 39) reflects that on August 3, 2011, at 12:45 a.m., there was a car stop at Avenue I and East 2nd Street, in Brooklyn. At 1:00 a.m., PO Bowman made an arrest for criminal possession of marijuana. At 1:10 a.m., PO Imperatrice arrived at the 70th Precinct. At 1:20 a.m., a strip-search with PO Bowman yielded positive results. Sgt. Willabus was present.

CCRB Statement

PO Imperatrice was interviewed at the CCRB on March 29, 2012 (encl. 42). § 87(2)(g) On August 3, 2012, at 1:00 a.m., PO Imperatrice was on patrol with the SNEU unit when he saw the emergency lights of a marked police vehicle on. PO Imperatrice went to back up the unit. The unit had pulled over a vehicle at the intersection of East 2nd Street and Avenue I, in Brooklyn. PO Imperatrice was not sure why the vehicle was stopped. PO Imperatrice could not recall who was in the car with him when he arrived to the scene. When PO Imperatrice arrived to the scene, a crime team was on scene and so was PO Bowman. PO Bowman was still in his vehicle. PO Imperatrice approached the driver side of the vehicle where § 87(2)(b) was seated, and Sgt. Willabus approached the passenger side. There were no passengers in the car. The windows of the car were down. When approaching the vehicle, PO Imperatrice saw § 87(2)(b) leaning back and motioning like he was stuffing something down the back of his pants. PO Imperatrice noticed the strong smell of marijuana coming from the open windows of the vehicle. PO Imperatrice saw a marijuana cigar in the center ash tray. PO Imperatrice stated that § 87(2)(b) was very nervous and had glassy red eyes. PO Imperatrice told § 87(2)(b) to step out of the vehicle. § 87(2)(b) stepped out of the vehicle. PO Imperatrice did not recall if any officer frisked § 87(2)(b) when he immediately stepped out of the vehicle. PO Imperatrice told § 87(2)(b) to go to the back of the vehicle. PO Bowman frisked § 87(2)(b) while he stood near the back of the vehicle. When PO Imperatrice asked § 87(2)(b) if he smoked marijuana, § 87(2)(b) said that he had smoked earlier in the day. PO Imperatrice searched the vehicle to make sure no other drugs were in the vehicle. PO Imperatrice did not recall if any other officer searched the vehicle.

§ 87(2)(b) was placed in handcuffs after he exited the vehicle. The incident lasted approximately 15 minutes. § 87(2)(b) was transported to the 70th Precinct stationhouse. PO Imperatrice did not remember who transported § 87(2)(b) to the stationhouse. § 87(2)(b)'s vehicle was removed to the 70th Precinct but PO Imperatrice did not recall who transported the vehicle.

While at the 70th Precinct stationhouse, § 87(2)(b) was strip-searched in the bathroom in the holding cell area. PO Bowman and PO Imperatrice conducted the strip-search in Sgt. Willabus' presence. PO Bowman handed clothes to PO Imperatrice, who checked the clothing. PO Imperatrice did not observe officer Bowman make physical contact with § 87(2)(b)'s buttocks. None of the officers conducted a cavity search on § 87(2)(b) at any point. Marijuana and cocaine was recovered as a result of the strip-search.

Witness Officer: PO DAVID BOWMAN

- PO Bowman is a § 87(2)(b)-old white male, who is § 87(2)(b), and has brown hair and green eyes.
- PO Bowman worked from 9:10 p.m. on August 2, 2011, to 5:45 a.m. on August 3, 2011. PO Bowman worked in the 70th Precinct and was assigned to the Street Narcotics Enforcement Unit. He was working with PO Albert Romano and PO Jon-Michael Lobosco. PO Bowman was dressed plainclothes. PO Bowman was assigned to a black Chevy Impala.

Memo Book

PO Bowman's memo book (encl. 22) reflects that on August 3, 2011, at 12:50 a.m., there was a car stop at the intersection of Avenue I and East 2nd Street, in Brooklyn. At 1:00 a.m., there was an arrest. At 1:10 a.m., PO Bowman arrived at the 70th Precinct. At 1:20 a.m., a strip-search yielded positive results.

Complaint and Arrest Report

The complaint report and arrest report (encl. 24) reflects that pursuant to a car stop, § 87(2)(b) was in possession of a quantity of cocaine and a quantity of marijuana. Thirty-two zip locks of cocaine, 1/8 ounce of cocaine, 1 marijuana cigar and United States Currency were vouchered as a arrest evidence. § 87(2)(b) was charged with § 87(2)(a) 160.50 § 87(2)(b) criminal possession of a controlled substance in the 5th degree/narcotics (PL 220.06), criminal possession of a controlled substance in the 7th degree (PL 220.03) and criminal possession of marijuana in the 5th degree/public view (PL 221.10).

Complaint Room Screening Sheet and Criminal Court Compliant

PO Bowman was listed as the report and testifying officer in the Complaint Room Screening Sheet (encl. 28) and Criminal Court Compliant (encl. 30) § 87(2)(g) § 87(2)(b). The reports reflect that on August 3, 2011, at 1:00 a.m., PO Imperatrice observed § 87(2)(b) driving with a plate cover on § 87(2)(b)'s car, which was covering the back license plate of the vehicle, a 2011 Nissan Maxima, license plate #§ 87(2)(b). Police officers approached § 87(2)(b)'s vehicle and observed a marijuana cigar in the ashtray, in public view. § 87(2)(b) was removed from the vehicle and placed under arrest. § 87(2)(b) was transported to the 70th Precinct where PO Bowman patted down and searched § 87(2)(b). PO Bowman recovered 32 zip lock bags of cocaine and 1 large plastic twist of cocaine from § 87(2)(b)'s person, \$1,087 and a marijuana cigarette. A field test on the marijuana from the car and the cocaine and marijuana recovered from § 87(2)(b)'s person tested positive.

CCRB Statement

PO Bowman was interviewed at the CCRB on March 29, 2012 (encl. 32). On August 3, 2011, at approximately 12:50 a.m., a car stop was conducted at Avenue I and East 2nd Street, in Brooklyn. The operator of the vehicle was § 87(2)(b). PO Bowman believed that the car stop was initiated by Sgt. Willabus, who was in another vehicle, and the reason was for improper license plate or failure to signal. However, PO Bowman did not observe any violations. Sgt. Willabus and PO Imperatrice were the first ones on scene. They were in a marked patrol car. PO Bowman, who served as back up, pulled alongside their vehicle. Upon PO Bowman's arrival, PO Imperatrice and Sgt. Willabus were already interacting with § 87(2)(b). When PO Bowman approached the vehicle PO Imperatrice and Sgt. Willabus were interacting § 87(2)(b) § 87(2)(b). Sgt. Willabus was on the passenger side and PO Imperatrice was on the driver side. PO Bowman approached the car from the rear on the driver side. PO Imperatrice immediately informed PO Bowman that he smelled marijuana. PO Bowman also smelled marijuana coming from inside the vehicle. PO Bowman later learned that PO Imperatrice saw § 87(2)(b) make motions towards his waist band when he was approaching the vehicle. PO Bowman did not witness this himself. In PO Bowman's experience as a SNEU officer in the confines of the 70th Precinct, § 87(2)(b)'s motions were consistent with someone hiding drugs.

PO Imperatrice told § 87(2)(b) to step out the vehicle and § 87(2)(b) complied and exited the vehicle. PO Imperatrice saw marijuana in plain view, which PO Imperatrice

subsequently recovered from the ash tray. PO Bowman did not see the marijuana but PO Imperatrice informed PO Bowman about it. PO Bowman frisked § 87(2)(b) when he exited the vehicle. PO Bowman did this for his safety. PO Bowman did not see a weapon on § 87(2)(b). At this time, § 87(2)(b) was placed under arrest for the marijuana that was found in the ash tray.

§ 87(2)(b)'s vehicle was removed to the 70th Precinct. PO Bowman could not recall who transported the vehicle. PO Bowman could not recall who transported § 87(2)(b) to the 70th Precinct. PO Bowman did not transport § 87(2)(b) to the 70th Precinct.

At the 70th Precinct stationhouse, PO Bowman asked Sgt. Willabus if they can conduct a strip-search on § 87(2)(b) because marijuana was already recovered and because PO Imperatrice observed § 87(2)(b) make motions of stuffing something in his pants. § 87(2)(b) was strip-searched in a bathroom in the holding cell area. This area is not in view of any prisoners. PO Bowman and PO Imperatrice conducted the strip-search in Sgt. Willabus' presence. As a result of the strip-search, additional marijuana and cocaine were recovered. All of the items vouchered, except for the marijuana cigar, were recovered during the strip-search. The marijuana cigar was recovered in § 87(2)(b)'s vehicle. At no point was a cavity search conducted on § 87(2)(b).

Officers Not Interviewed

§ 87(2)(g)

NYPD Documents

Command Log

§ 87(2)(b)'s entry in the command log reflected that a strip-search was authorized by Sgt. Willabus (encl. 44). § 87(2)(b) was charged with criminal possession of marijuana and criminal possession of a controlled substance. His physical and mental condition was listed as normal.

Summons/Arrest for Incident and Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of June 28, 2012, with regard to the incident (encl. 84).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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§ 87(2)(b)

Civilians CCRB History

- This is the first CCRB complaint involving § 87(2)(b) or § 87(2)(b) (encl. 7).

Subject Officer CCRB History

- Sgt. Willabus has been a member of the service for eight years and there is one substantiated CCRB allegations against him (encl. 3).
 - In CCRB 200700641, the CCRB substantiated an abuse of authority (other) allegation and recommended charges. The NYPD declined to prosecute in July of 2008.

Conclusion

Identification of Subject Officer(s)

§ 87(2)(g) a vehicle stop and strip-search allegation is pleaded against Sgt. Willabus.

Investigative Findings and Recommendations

Allegations Not Pled

§ 87(2)(g)

Allegation A – Abuse of Authority: Sgt. Winston Willabus authorized the stop of the car in which § 87(2)(b) was an occupant at East 2nd Street and Avenue I, in Brooklyn.

The complaint room screening sheet and criminal court complaint prepared reflects that § 87(2)(b) was pulled over because his license plate cover was obstructing his license plate. Although § 87(2)(b) said he was not aware of any reason he was pulled over, § 87(2)(b) also acknowledged that the car he was driving belonged to his girlfriend. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Exonerated**.

Allegation B – Abuse of Authority: Sgt. Winston Willabus authorized the strip-search of § 87(2)(b) at the 70th Precinct stationhouse.

§ 87(2)(g)

Patrol Guide section 208-5 (encl. 1) authorizes a strip-search when “the arresting officer reasonably suspects that weapons, contraband or evidence may be concealed upon the person or in the clothing in such a manner that they cannot be discovered by the previous search methods.” PO Imperatrice testified that while § 87(2)(b) was seated in the vehicle, he observed § 87(2)(b) lean back and motion like he was stuffing something down his pants. Additionally, PO Imperatrice testified that there was a strong odor of marijuana emanating from the vehicle. Although Sgt. Willabus and PO Bowman did not see § 87(2)(b) motion as if he was hiding something, both officers had knowledge of this happening from PO Imperatrice, and

also smelled marijuana. Marijuana and cocaine were recovered from both the vehicle and on § 87(2)(b) s person. § 87(2)(g) It is therefore recommended that **Allegation B** be closed as **Exonerated**.

Team: 4

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Investigator:	_____	Lauren Goldapper_____	_____
	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date